



File No.: EXP202410282

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on July 1, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On July 1, 2024, a complaint was submitted to this Agency by A.A.A. (hereinafter, the complainant) against B.B.B. (hereinafter, the respondent) for not having duly addressed their right to erasure. The complainant had an employment relationship with the respondent. They state that the conflict regarding the end of that employment relationship led to a judicial process in the Social Court, concluding with an extrajudicial agreement on ***DATE.1 to avoid trial.

The complainant indicates that "(...) despite having concluded my employment relationship with B.B.B. more than a year and a half ago, my name and phone number continue to appear on the company's website and in Google search results (...)"

They provide:

- An email dated 06/05/2024 sent to the respondent requesting the "(...) immediate deletion of all references to my person and my contact details that are still published on your website and social media. (...) I have confirmed that my contact details, including my phone number, are still associated with your profile on Google and other online platforms (...) Therefore, I demand that you (...) proceed to

1. Remove any mention of my name, phone number, and any other personal information from your website and social media.

2. Update the information on Google and other online platforms so that my phone number is no longer associated with your company."

- An email dated 06/06/2024 sent to the complainant:

"We have received a complaint in which our clients C.C.C. and her daughter B.B.B. are requested to remove all references to your person from the website and social media.

In this regard, we inform you that not only is such an eventuality not true, but on the contrary, we demand that you remove from yours and your social media all data, photos, or any other reference to the person of C.C.C. and Ms. B.B.B.

Your manner of acting could be framed within the type of threats and coercions, so we will study the feasibility of filing a complaint for the reiteration of these unlawful intrusions, as you have done with the undersigned lawyer."

- A screenshot of a webpage showing two phone numbers with a handwritten note from the complainant indicating that one of those numbers is their personal phone and "(...) this website was created after I left"

- A printout of a Google search for "B.B.B." where several photographs appear, and in four of them, notes from the complainant indicating that it is their image and that "(...) it is still on Google"

- A document that only contains the name and first surname of the complainant, "Founder," a phone number, and two Instagram URLs

SECOND: On September 26, 2024, a new document was submitted to this Agency by the complainant indicating that their contact details are still present on the website and social media of the respondent.

They provide:

- A screenshot of "***COMPANY.1" where several photographs and data of addresses, email, and a phone number framed by the complainant appear

- Screenshots of the "Privacy Policy" and "Contact" from the website of "B.B.B."

THIRD: On October 28, 2024, a new document was submitted to this Agency by the complainant providing a copy of the "Privacy Policy" from the website of the respondent.

FOURTH: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the

respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The notification of the forwarding of the complaint, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was made on July 15, 2024, as stated in the acknowledgment of receipt in the file.

No response has been received to this forwarding document.

FIFTH: The result of the forwarding procedure indicated in the previous Fact did not satisfy the claims of the complainant. Consequently, with

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On October 1, 2024, for the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint filed.

The aforementioned agreement granted the respondent the opportunity to present their arguments within ten working days.

The respondent submitted a document dated November 11, 2024, stating that “(...) it is dedicated, among other things, to providing advertising services, for which it uses access codes to the various digital portals and social networks of its clients.”

It states that the complainant “(...) has appropriated our codes to access our advertising pages, social networks, and other digital tools, all with the aim of using them personally to have advertising tools for their own benefit.”

“(...) As I lack technical computer knowledge, I do not have any elements of judgment or any other type to assess the fraudulent use that the complainant was making of my digital tools, the provision of the same, as well as the data of content and access, a fact that has led to the immediate deletion of any unrelated data related to the complainant as soon as it was possible. (...)”

The respondent indicates that “(...) it is important to note that there is a complaint filed with the state security forces for the possible commission by the complainant of a crime of usurpation of civil status.” It provides:

- A copy of the email dated 06/06/2024 sent to the complainant, which has been previously submitted by them.
- A copy of the email dated 10/06/2024 from the representative of the respondent sent to the complainant where “(...) I demand that you refrain from contacting my clients. (...)”
- A complaint filed by the respondent with the Civil Guard for the commission of “Crime of usurpation of civil status.”
- A copy of the Conciliation Record dated ***DATE.1 from the Social Court ***COURT.1 between the parties.

SIXTH: The complainant has submitted several documents to this Agency:

- Dated 13/01/2025
 - o States that it sends various documents to demonstrate that their data is still being followed.
 - o Provides various pages and photographs, none of which contain any date.
- Dated 14/02/2025
 - o Several photographs, without any date indicating when they were obtained.
 - o Screenshot of WhatsApp messages indicating the date for the trial in the Social Court ***COURT.1 on ***DATE.1.
 - o Citation notice for the day 19/02/2025 from the Court of First Instance and Instruction ***COURT.2 for the crime of harassment to “Receive your statement regarding the cross complaints filed.”
 - o A document from the complainant indicating their activities, in the form of a diary, for the respondent.
 - o A copy of the Decree of ***DATE.1 from the Social Court ***COURT.1 indicating that a conciliation record has been formalized between the parties.

- Dated 20/02/2025

o Again provides a copy of the Decree of ***DATE.1 from the Social Court ***COURT.1, which indicates that a conciliation record has been formalized between the parties.

SEVENTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, they may formulate the arguments they deem appropriate.

On February 26, 2025, the complainant submitted a document stating that the facts motivating their complaint are "Contractual Breach and Alteration of the Employment Relationship" (...), "Harassment, Defamation, and Persecution" (...), and "Improper Use of my Image and Personal Data":

- "During the professional relationship, my image and personal data have been used without my consent, violating my rights to data protection and to my own image."

- "As a result, I sent an email demanding the immediate cessation of the unauthorized use of my image and warning of the filing of a complaint with the Spanish Agency for Data Protection. This email is part of the file and supports my legitimate action in defense of my rights."

Conclusions and requests:

a) Consider this response submitted, which is integrated into the corresponding administrative file, along with all the evidentiary means that demonstrate the veracity of my allegations.

b) Acknowledge the existence of a duly documented contractual relationship and confirm the breach of obligations by the counterparty.

c) Proceed to investigate and sanction the abusive, harassing, and defamatory conduct, ordering the immediate cessation of any improper use of my image and personal data.

d) Adopt the necessary measures to repair the damage caused to my personal and professional integrity, guaranteeing the protection of my rights in accordance with current legislation.

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EIGHTH: On February 26, 2025, another new document was received by this Agency, submitted by the claimant, in which various documentation previously submitted is provided again, along with others to justify their employment relationship.

NINTH: After granting a hearing to the respondent, there is no record of any response submitted to this Agency.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to

cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and proof of having provided the claimant with the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on October 1, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission for processing determines the opening of the present procedure for failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states: "When the procedure refers exclusively to the failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to rectify any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject, and to state their reasons if they do not intend to comply with such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

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Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

a) the personal data are no longer necessary in relation to the purposes for which they were collected

or otherwise processed;

b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and there is no other legal ground for the processing;

c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);

d) the personal data have been unlawfully processed;

e) the personal data must be erased for compliance with a legal obligation under Union or Member State law applicable to the controller;

f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the controller, taking into account available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to those personal data, or any copies or replications of them.

3. Paragraphs 1 and 2 shall not apply where the processing is necessary:

a) for exercising the right of freedom of expression and information;

b) for compliance with a legal obligation which requires processing by Union or Member State law applicable to the controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;

d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes, in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to render impossible or seriously impair the achievement of the objectives of that processing, or

e) for the establishment, exercise or defense of legal claims."

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V

Conclusion

The rights procedure is initiated as a consequence of the lack of attention to any of the rights regulated in the data protection regulations. Therefore, in this case, only the facts related to the exercise of these rights will be analyzed and evaluated, excluding the rest of the issues raised by the parties.

Additionally, it should be noted that this Agency lacks the competence to analyze and evaluate compliance or non-compliance with the contractual conditions between the parties, and if it is deemed necessary, they should address the competent authorities in the matter.

In this case, and considering the provisions in the first paragraphs of this Legal Basis, this procedure is initiated due to the complaint filed by the complainant regarding the lack of attention to their right to erasure. In this regard, from the examination of the documentation provided by the parties, it has been established that the complainant requested the respondent to erase their personal data, and this right has not been attended to or denied with justification, in accordance with the provisions of the data protection regulations, also demonstrating the duty of response established in Article 12.4 of the LOPDGDD.

During the processing of this procedure, the respondent entity has replied to this Agency, in its allegations of November 11, 2024, that "(...) As I lack technical computer knowledge, I do not have any elements of judgment or any other type to assess the fraudulent use that the complainant was making of my digital tools, the provision of the same, as well as the data of content and access, which has led to the fact that as soon as it was possible for me, I proceeded to eliminate any unrelated data related to the complainant. (...)". However, no documentary evidence has been provided that allows for the

consideration that the duty of response established in Article 12.4 of the LOPDGDD has been fulfilled. Thus, it cannot be accepted that the response that should be given can be manifested merely as an administrative procedure, such as the formulation of allegations in the present procedure, which was initiated precisely due to the failure to duly attend to the request in question.

The aforementioned regulations do not allow for the request to be overlooked as if it had not been raised, leaving it without the response that the responsible parties are obliged to issue, even in the event that there are no data in the files or even in those cases where the requirements are not met, in which case the recipient of such a request is also obliged to require the correction of the observed deficiencies or, if applicable, deny the request with justification indicating the reasons why the right in question should not be considered.

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Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

Given that no copy of the necessary communication that must be directed to the complainant informing them about the decision made regarding the request for the exercise of rights is attached, it is appropriate to uphold the complaint that initiated this procedure.

In view of the cited provisions and other generally applicable regulations, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by A.A.A. considering that the provisions of Article 17 of the GDPR have been infringed and to urge B.B.B. with NIF ***NIF.1, to, within ten working days following the notification of this resolution, send the complainant a certification addressing the requested right or denying it with justification indicating the reasons why the request should not be attended to, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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